

the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$7,500 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07.

C. Discussion and Conclusion

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

Counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

6. 9:00 AM CASE NUMBER: C24-02031
CASE NAME: LEIGHA SCHARSCH VS. VICI COLLECTION, LLC
***HEARING ON MOTION IN RE: COMPLIANCE WITH PAGA SETTLEMENT SET BY DEPARTMENT**
FILED BY:
TENTATIVE RULING:

The final report on disbursement is **approved**. The remaining uncashed funds shall be deposited with the Unclaimed Property Fund.

7. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM KATHLEEN**
CABALLERO TO FORM INTEROGS, SET 1
FILED BY: FREEDOM FOREVER, LLC
TENTATIVE RULING:

Defendant Freedom Forever has filed this motion to compel further responses to form interrogatories from plaintiff Caballero. No opposition to the motion has been filed. However, last week Freedom Forever filed a notice of bankruptcy, which operates to stay all proceedings in this state-court case. The motion is therefore taken **off calendar**.

8. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM KATHLEEN VEGA TO**
FORM INTEROGS, SET 1
FILED BY: FREEDOM FOREVER, LLC
TENTATIVE RULING:

Defendant Freedom Forever has filed this motion to compel further responses to form interrogatories from plaintiff Vega. No opposition to the motion has been filed. However, last week Freedom Forever filed a notice of bankruptcy, which operates to stay all proceedings in this state-court case. The motion is therefore taken **off calendar**.

9. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM KATHLEEN VEGA TO SPECIAL INTEROGS, SET 1**
FILED BY: FREEDOM FOREVER, LLC
TENTATIVE RULING:

Defendant Freedom Forever has filed this motion to compel further responses to special interrogatories from plaintiff Caballero. No opposition to the motion has been filed. However, last week Freedom Forever filed a notice of bankruptcy, which operates to stay all proceedings in this state-court case. The motion is therefore taken **off calendar**.

10. 9:00 AM CASE NUMBER: C25-02263
CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A DELAWARE LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: STAY UNLAWFUL DETAINER**
FILED BY: GODDARD, THOMAS JOSEPH
TENTATIVE RULING:

Before the Court is Plaintiff Thomas Goddard's Motion for Stay of Unlawful Detainer Pending Resolution of Discrimination Claims. Plaintiff's Motion is **denied as moot**.

Factual Allegations and Procedural Background

On August 15, 2025, Plaintiff filed the Complaint in this instant matter which is a dispute between a tenant (Plaintiff) and his landlord (Defendants).

On November 17, 2025, Defendant 1910 Apartments initiated an unlawful detainer action against Plaintiff (case No. MS25-0977). On January 26, 2026, the court entered a default judgment against Plaintiff. Notice of entry of judgment was sent on January 28, 2026. A writ of possession was issued on January 30, 2026. Plaintiff filed a notice of appeal on February 17, 2026. A stay of execution was issued, staying the order through February 27, 2026. The appeal was dismissed on April 6, 2026.

Defendant's counsel indicates that the Sheriff's department completed a lockout of the Property and that as of April 9, 2026, Plaintiff has been removed all his personal items from the Property and has vacated the premises.

Standard

"A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141 quoting *People v. Bell* (1984) 159 Cal.App.3d 323, 329.) As the U.S. Supreme Court "explained, 'the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.'" (*Ibid.* quoting